

25NNCV05084 25NNCV05084

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Case Number: 25NNCV05084 Hearing Date: August 12, 2026 Dept: X

#27 - MATAN ATIASS vs STEVEN PALLINI, et al.

Defendant Verej Ghoukasian filed an application for determination of good faith settlement between him and Plaintiff. Then, Defendants/Cross-Complainants Steven Pallini and Northeast Graffiti Busters filed a motion contesting that application.

The motion is DENIED and the application is GRANTED.

The record shows a

policy-limits settlement and a disputed liability picture. On one hand, the moving parties point to Plaintiff's claimed damages and to evidence they say shows Ghoukasian was traveling at an excessive speed. On the other, Ghoukasian points to evidence that Pallini was driving the wrong way in the southbound lanes at the time of the collision. Thus, comparative fault is genuinely disputed.

Given the disputed

liability evidence and the asserted policy-limits nature of the settlement, the Court cannot conclude that the \$100,000 settlement falls so far outside a reasonable range as to establish bad faith.

The moving parties'

reliance on Plaintiff's claimed damages does not compel a different result because claimed damages alone do not resolve Ghoukasian's likely share of comparative fault. The papers also do not identify concrete evidence of collusion, fraud, or tortious conduct directed at prejudicing the nonsettling defendants.

In reply, the moving

parties alternatively request a continuance to conduct discovery into

Ghoukasian's financial condition if the Court is not inclined to deny the application outright.

The record already includes the settlement amount, the asserted policy limits, the parties' competing liability positions, and Plaintiff's claimed damages. On this showing, further delay is not warranted.

In reply, the moving parties also ask the Court to disregard Plaintiff's joinder as untimely. Because the Court reaches the merits based on the motion alone, it need not resolve that procedural issue.

Verej Ghoukasian's application for determination of good faith settlement is GRANTED.

The motion by Steven Pallini and Northeast Graffiti Busters contesting Verej Ghoukasian's application for determination of good faith settlement is DENIED. The Court finds that the settlement between Plaintiff Matan Atiass and Defendant Verej Ghoukasian, in the amount of \$100,000, was made in good faith within the meaning of Code of Civil Procedure sections 877 and 877.6. Pursuant to Code of Civil Procedure section 877.6, all claims against Ghoukasian for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault are barred.

Ghoukasian is to give notice.